

IN THE HIGH COURT OF JUDICATURE FOR RAJASTHAN
AT JODHPUR

O R D E R

ELECTION PETITION No. 2 of 2009

NEERAJ DANGI
V/S
JAGSI RAM & ORS.

Date of order : 11.8.2009

PRESENT
HON'BLE SHRI N P GUPTA, J.

Mr. M MRIDUL assisted by Mr. AK CHOUDHARY, for the petitioner

Dr. PS BHATI assisted by Mr. MANMEET SINGH RAI, Mr. ANAND PUROHIT, for the respondent

BY THE COURT :

The respondent No.1 has filed this application under Order 7 Rule 11 C.P.C., on 2.4.2009 contending inter-alia that in the election petition, the sole ground alleged is of furnishing incomplete, wrong and suppressed information in the affidavit submitted by the respondent No.1. It is alleged that election petition nowhere goes on to point out, as to which provisions of the Representation of the People Act, 1951, hereafter to be referred to as the Act, or the Constitution puts an obligation for contesting candidate to furnish the records of sale and purchase of the assets, cash flow, educational qualification etc. It is then alleged, that according to Section 81 read with Section 100 of the Act, the election petition can only be filed on the grounds mentioned in the Act, the petitioner has invoked Section 100(1)(d)

(i) & (iv), but it is not disclosed, as to how these Sections form a ground. Then regarding the reliance placed on violation of the voters right to know, about the contesting candidate under Article 19(1)(a), it was contended, that the matter is sub-judice before the Apex Court, and till that matter is finally decided, it is not open to the petitioner to raise this ground for challenging the election. With these averments, it is contended in the application that in the election petition, there should be a cause of action, on which the Court can adjudicate, and decide the matter, and such cause of action should be in accordance with the provisions of the Act of 1951 i.e. the petition can only be filed on the grounds enumerated in Section 100, and where the facts fail to disclose, as to how this ground is attracted, or which provision of the Constitution, or the Act of 1951, and the Rules, and orders made thereunder have not been complied with, it would amount, to it being a fit case for dismissal of the Election Petition, under Order 7 Rule 11. It has also been contended, that the petitioner has failed to mention, as to under which provisions of law, it is mandatory upon the contesting candidate to disclose the sale and purchase of the assets, and for non-disclosure, the nomination is liable to be rejected, more so when Section 33 does not lay down any such condition. Therefore it is prayed, that the election petition be dismissed under Order 7 Rule 11.

To this application, no reply as such has

been filed. Though since reply to the main petition had also been filed by the respondent No.1, the petitioner filed application Under Order 8 Rule 9, and the rejoinder, while the respondent No.1 filed reply-cum-written-statement-cum-objections-cum-rejoinder to that application under Order 8 Rule 9, which all need not detain me here, as this order is being passed only for deciding the application under Order 7 Rule 11 C.P.C., being I.A. No. 4889/2009.

This application was argued partly on 14.5.2009, and the arguments were completed on 9.7.2009, and the matter was ordered to be put up for orders thereon today i.e. 11.8.2009.

A look at the provisions of Order 7 Rule 11 (a) would show, that thereunder the petition is required to be rejected, where it does not disclose a cause of action. It is this provision, which is pressed into service by way of the application under consideration.

I may at once observe, that it is established law, that for deciding the application under Order 7 Rule 11, the averments of the plaint (the election petition in the present case) and the documents annexed therewith only have to be considered. At the same time, it is also established law, that for deciding application under Order 7 Rule 11, the pleadings and the documents have to be taken on their face value. Considering the above material as above,

it is to be found out, as to whether the petition discloses any cause of action or not. Obviously therefore, the defence raised, or the documents, submitted in the defence, cannot be taken into consideration, for considering as to whether the petition discloses any cause of action or not.

Coming to the provisions of the Act of 1951, the election can be called in question in accordance with the provisions, and procedure prescribed by Chapter II, and Section 83 prescribes the contents of the petition, while Section 81 provides that an election petition calling in question any election may be presented on one or more of the grounds specified in sub-section (1) of Section 100, and Section, and Section 101 to the High Court. Then Section 101 need not detain me, as it provides for eventualities and grounds, on which a candidate other than the returned candidate may be declared to have been elected. Thus, the precise provision cataloging grounds of declaring election to be void are contained in Section 100.

The election petitioner in the present case has relied upon the provisions of Section 100(1)(d)(i) & (iv) and Section 33(1) of the Act. The two provisions of Section 100(1)(d)(i) and Section 100(1)(d)(iv) respectively read as under:-

"100. Grounds for declaring election to be void. (1) Subject to the provisions of sub-section (2) if the High Court is of opinion-

(d) that the result of the election, in so far as it concerns a returned candidate,

has been materially affected-

(i) by the improper acceptance or any nomination, or

.....

(iv) by any non-compliance with the provisions of the Constitution or of this Act or of any rules or orders made under this Act, the High Court shall declare the election of the returned candidate to be void."

Thus, a look at them shows that sub-clause (i) comprehends eventuality of improper acceptance of any nomination, while sub-clause (iv) comprehends eventuality of non-compliance with the provisions of the Constitution, or of the Act of 1951, or of the Rules, or orders made under the said Act, and in either case, it should have materially affected the result of the election. Thus, it is to be seen, as to whether in the petition, it is shown that the election has been materially affected, by any improper acceptance of the nomination, or that, there has been any non-compliance with the provision of the Constitution, or of the Act of 1951, or of the Rules, or orders made under the Act, which has materially affecting the result; and if any non-compliance is alleged, it is non-compliance of which one, or more of the aforesaid, i.e. the Constitution, or of the Act of 1951, or of the Rules, or orders made under the Act.

Then I come to Section 33. Section 33 provides for presentation of nomination paper, and requirement of a valid nomination, and therefore, it is to be seen, which part of the provision of Section

33, is alleged to have been violated.

With the above resume of the provisions, now I proceed to examine the averments of the election petition.

Para 1 to 3, being preliminary submission, are not relevant for the present controversy. Then in para 4 it is alleged as under:-

"4. That against the requirement to disclose information prescribed by the Election Commission of India on 27 March, 2007 in pursuance of order of the Apex Court, the respondent No.1 while filing the nomination paper had filed two affidavits dated 15.11.2008 making mention about the pendency of criminal cases and the details of the movable as well as immovable properties, bank accounts etc. in respect of self, spouse and dependants therein and certified copies of such affidavits dated 15.11.2008, running into 2 & 5 pages are filed herewith and marked as EXHIBIT-2 & EXHIBIT-3 respectively."

Then in para 6, the petitioner has alleged in various sub-paras the information found by the petitioner, relating to the respondent No.1, and his wife, apart from the information given by him, through affidavit, along with the nomination paper.

In this list in sub-para (i) it is alleged, that the age has been wrongly mentioned, inasmuch as, in 2003 also the returned candidate has shown his age to be 41 years. Then in sub-para (ii) it is alleged that the returned candidate is 7th fail, and did not pass 7th class examination. Then in sub-para (iii), (iv) and (v) details of certain properties, being

agricultural lands, or commercial shops have been given, which were purchased or sold by the returned candidate and/or his wife. Then in sub-para (vi) it is alleged, that the returned candidate holds a Permanent Account Number being "APJPK7314P". After making these averments, in para 7 the petitioner has precisely cataloged grounds on which the petition is filed.

Ground A is that the respondent No.1 did not correctly and completely fill Form No.2B in the prescribed proforma, which is filed by the petitioner as Schedule-I.

I may notice here, that in this ground, or in the facts, it is not mentioned, as to how the Form No.2B was not correctly and completely filled.

Then in Ground B, it is alleged, that the choice of the voters made in favour of respondent No.1 is based on incomplete and wrong disclosure, and suppression of material information. Probably in Ground A also, the petitioner means to refer to these aspects only. In this Ground B, the list of wrong disclosures, incompleteness, and suppression of material information has been given in 6 sub-clauses. In sub-clause (i) again it is alleged, that the respondent No.1 has mentioned his age to be 41 in 2008, whereas he himself mentioned the same age in 2003. Then in sub-clause (ii) it is alleged, that educational qualification has been mentioned in para 4 of the affidavit as 9th, whereas in fact, he is 7th

fail. Then in sub-clause (iii) it is alleged, that under para 2(Ka) while giving description of movable properties, the respondent No.1 has not shown anything in the name of his wife, whereas she is supposed to maintain cash balance, as she had been engaged in purchase and sale of lands, and Ex.9 and 10 have been relied upon for that purpose. Then in sub-clause (iv) the ground taken is, that while making disclosure of immovable properties in para 2(kha), the respondent No.1 has deliberately not disclosed the properties held by him in his own name, and reliance is placed on Ex.8. Then in sub-clause (v) the ground taken is, that item No.3 under para 2(kha) with the heading of Immovable Properties against the column of commercial and residential building, the respondent has not shown anything in the name of his wife, whereas she owns commercial property, and reliance is placed on Ex.11. Then in sub-clause (vi), the ground taken is, that at item No.(i) under para 3(kha), the respondent has concealed his Permanent Account Number (PAN) and other details required under this column.

With giving these details, the ground C is taken, to the effect, that invalid and misleading candidature of the respondent No.1 has materially affected the election results, inasmuch as, he has been declared elected, while the petitioner has lost by margin of 3238 votes only. In absence of an invalid and misleading candidature like that of the respondent No.1, the petitioner would have been the choice of the electorate. Then Ground D is that the affidavits

furnished by respondent No.1 along with the nomination papers entailed in non-est affidavits in the eye of law, due to the aforesaid defects (wrong and incomplete disclosure and suppressed material information) in disclosure of information. Then Ground E is, that because of incomplete, wrong and suppressed information in the affidavits submitted by the respondent No.1, his nomination papers are incomplete, under the meaning of Section 33(1), and acceptance of the same is improper under Section 100(1)(d)(i) and (iv). Then Ground F is, that respondent No.1 secured votes violating right to know of the voters available to them under Article 19(1)(a) of the Constitution. This is the whole long and short of the election petition.

Though the factual averments, about age and academic qualification have been explained by the respondent No.1 in reply, and the averments, about movable and immovable property have also been, either explained, or denied, but then since I am dealing with the application under Order 7 Rule 11 C.P.C., as observed above, for deciding this application, those pleadings are not taken into account, and the only thing to be considered is, as to whether the averments made in the election petition, read with the documents filed along with it, make out any cause of action.

Regarding the ground enumerated in Section 100(1)(d)(i), being improper acceptance of nomination, the allegation of the election petitioner is, as

noticed above, in ground E that nomination papers are incomplete under the meaning of Section 33(1) of the Act, therefore, now I come to the provisions of Section 33(1).

According to Section 33(1), on or before the date appointed under clause (a) of Section 30 each candidate shall, either in person or by his proposer, between the hours of eleven O'clock in the forenoon and three O'clock in the afternoon deliver to the returning officer at the place specified in this behalf in the notice issued under Section 31, a nomination paper completed in the prescribed Form, and signed by the candidate, and by an elector of the constituency as proposer. The provisos appended to this sub-section are not relevant. Thus, a reading of this Section shows that the only requirement is of submitting nomination paper completed in the prescribed form, and signed by the candidate and by an elector of the constituency as proposer. Perhaps according to the petitioner, in view of the alleged suppression of information, and giving of wrong information, as detailed in Ground B, so also in para 6 of the petition, the petitioner assumes the nomination to be incomplete, and relies upon the requirements to disclose information, prescribed by the Election Commission of India on 27.3.2007, in pursuance of the order of the Apex Court.

In my view, Section 33 as such does not require any such information to be furnished, as is

expected by the petitioner. However, a look at Section 33A, as introduced by Amending Act No.72/2002, w.e.f. 24.8.2002, shows that a candidate, apart from any information, which he is required to be furnished under this Act, or the rules made thereunder, in his nomination paper delivered under sub-section (1) of Section 33, is also required to furnish the information, as to whether (i) he is accused of any offence punishable with imprisonment for two years, or more in a pending case, in which a charge has been framed by the court of competent jurisdiction; and (ii) he has been convicted of an offence other than any offence referred to in sub-section(1) or sub-section (2), or covered in sub-section (3) of Section 8 and sentenced to imprisonment for one year or more. Then according to sub-section (2), the candidate or his proposer, at the time of delivering to the returning officer the nomination paper under Section 33(1), is also to deliver to the returning officer an affidavit sworn by the candidate in a prescribed form, verifying the information specified in sub-section (1). Then according to sub-section (3), the returning officer is to display the aforesaid information.

I may hasten to observe here, that the two categories of information required to be given by Section 33A are none of those informations, which are alleged to have been suppressed by the returned candidate, nor suppression of any such information has been made a ground to challenge, or call in question the election.

Then Section 36 provides for scrutiny of nominations, and according to sub-section (1), the returning officer is under obligation to give the person specified therein, all reasonable facility of examining the nomination papers of all candidates, which have been delivered within time, and in the manner laid down under Section 33. Then the returning officer is to examine the nomination papers, and under sub-section (2) is to decide all such objections, which may be made to any nomination, and may, either on such objection, or on his own motion, after such summary inquiry, if any, as he thinks necessary, reject any nomination, on any of the grounds enumerated therein. Ground (a) is about the candidate being not qualified, or disqualified under the provisions enumerated therein, which in the present case, is not shown, and second ground is, that there has been failure to comply with any of the provisions of Section 33 or Section 34, which in the present case, is not shown. Then third ground is, that the signature of the candidate or the proposer on the nomination paper is not genuine, which again is not the case. Then sub-section (4) specifically provides, that a returning officer shall not reject any nomination paper on the ground of any defect, which is not of a substantial character.

It may be observed here itself, that it is not the averment, that any objection to the nomination was ever raised by the petitioner, at the time of

scrutiny, that the nomination was required to be rejected on any of the grounds enumerated in Section 36(2), except the assumption, that there has been failure to comply with the requirements of Section 33 (1) i.e. nomination paper being not complete in the prescribed form, again, in turn, i.e., for suppression, or disclosure of wrong information, as envisaged in para 6 and Ground B of the election petition.

Thus the question precisely boils down to is, as to whether giving of wrong information, or suppressing information in the nomination paper, and the affidavit accompanying it, as having been enumerated by the petitioner in para 6 and ground B, required rejection of nomination paper, so as to tantamount to improper acceptance of any nomination, within the meaning of Section 100(1)(d)(i) or tantamount to non-compliance with the provisions of the Constitution, or of the Act, or of any Rules or orders made under the Act.

Out of the list, as given in para 6 and Ground B, item No.(i), (ii) and (vi) were not pressed into service by the learned counsel for the petitioner during the entire course of argument, i.e. about the age, academic qualification, or omission to disclose PAN, and in my view, rightly so, as these are not the requirements, shown to be constituting a ground to reject the nomination.

The whole argument centered round the aspect of non-disclosure about movable and immovable properties, held by the respondent No.1, and/or his wife, which according to the petitioner, have not been disclosed. Reliance in this regard is placed on the requirement having been prescribed by the Election Commission on 27.3.2007, in pursuance of the order of the Apex Court, as pleaded in para 4, but then, the document (Order) dated 27.3.2007, whereby the requirements are alleged to have been prescribed by Election Commission, has not been produced by the petitioner with the election petition, and shelter is taken under the ground that, that is a judicial document, of which, judicial notice is required to be taken, and should be taken. This document has been produced by the respondent No.1 along with his reply, as Annex.R/2. In that view of the matter, I do not stand advised to go into the hyper-technical objection about non-maintainability of the election petition in absence of production of the order of the Election Commission of India dated 27.3.2003, or about requirement of judicial notice to be taken thereof, I propose to examine the matter on merits i.e., as to whether the disclosure was required by the said order dated 27.3.2007, sic. 2003, or the alleged misstatement constitute any non-compliance of the said order.

I may observe here that the petitioner has not given the details i.e. number etc. of the order dated 27.3.2007, while the respondent has produced the order dated 27.3.2003, and since during course of

arguments, no dispute was raised about identity of the said order, therefore, I proceed with the assumption that mention of the date "27.3.2007" in para 4 appears to be typographical mistake, and means to refer to the order dated 27.3.2003.

Before examining the order, I may consider the submissions made by the learned counsel during course of the arguments, and the arguments, centered round the two judgments of Hon'ble the Supreme Court, being the one in Union of India Vs. Association for Democratic Reforms and another reported in (2002)5 SCC 294. This is decided on 2nd May 2002 (which hereinafter shall be referred to as the order dated 2.5.2002). Then there is other judgment being People's Union For Civil Liberties (PUCL) and another Vs. Union of India and another, reported in (2003)4 SCC 399. This is the order dated 13.3.2003 (which hereafter shall be referred to as the order dated 13.3.2003).

Of course, certain other submissions were made by either side, viz. on the side of the respondent, that it has not been pleaded, as to which provisions of law or order has been violated, to maintain the election petition, while learned counsel for the petitioner, relying upon the Halsbury's Laws of England, Corpus Juris Secundum, and Section 83 of the Act, submitted that only material facts are to be pleaded, and not the law, and arguments were raised, and so on, however, I do not stand advised to go into all these aspects of the matter, As the controversy

has come down to the question of the requirements of the Election Commission's order dated 27.3.2003 having not been complied with, as the disclosure as prescribed therein had not been made, or wrongly made.

The above two judgments of the Hon'ble Supreme Court are the two judgments, which necessitated the Election Commission to pass orders from time to time, inasmuch as, consequent upon passing of the order dated 2.5.2002, the Election Commission passed an order dated 28.6.2002, and then on passing of the order dated 13.3.2003, the Election Commission issued the order dated 27.3.2003. Both these orders are contained in the order dated 27.3.2003. The order dated 27.3.2003 also contains the finding recorded by Hon'ble the Supreme Court in the order dated 2.5.2002, and the directions given by the Hon'ble Supreme Court to Election Commission in the said order dated 2.5.2002, so also the directions given by Hon'ble the Supreme Court in the order dated 13.3.2003, and in accordance therewith the order dated 27.3.2003 has been issued.

In the judgment dated 2.5.2002, Hon'ble the Supreme Court recognised in para 22 as under:-

"...In a democratic form of government, voters are of utmost importance. They have right to elect or re-elect on the basis of the antecedents and past performance of the candidate. The voter has the choice of deciding whether holding of educational qualification or holding of property is relevant for electing or re-electing a person to be his representative. Voter has to decide whether he should cast vote in

favour of a candidate who is involved in a criminal case. For maintaining purity of elections and a healthy democracy, voters are required to be educated and well informed about the contesting candidates. Such information would include assets held by the candidate, his qualification including educational qualification and antecedents of his life including whether he was involved in a criminal case and if the case is decided - its result, if pending - whether charge is framed or cognizance is taken by the court. There is no necessity of suppressing the relevant facts from the voters."

Then in para 33 onwards also considered the right of the voter to know about the candidate. Then in para 48 Hon'ble the Supreme Court directed the Election Commission to call for information on affidavit by issuing necessary orders by exercising powers under Article 324 on the 5 aspects enumerated therein, which are as under:-

"(1) Whether the candidate is convicted/acquitted/discharged of any criminal offence in the past - if any, whether he is punished with imprisonment or fine.

(2) Prior to six months of filing of nomination, whether the candidate is accused in any pending case, of any offence punishable with imprisonment for two years or more, and in which charge is framed or cognizance is taken by the court of law. If so, the details thereof.

(3) The assets (immovable, movable, bank balance, etc.) of a candidate and of his/her spouse and that of dependants.

(4) Liabilities, if any, particularly whether there are any overdues of any public financial institution or government dues.

(5) The educational qualifications of the candidate."

Accordingly, the Election Commission issued

the order dated 28.6.2002, requiring the candidates to furnish full and complete information in regard to all the five matters specified by Hon'ble the Supreme Court, in an affidavit, and format whereof was annexed thereto as Annex.1. It is this format, copy whereof is annexed by the Election Commission, the information was required to be given, and non-disclosure, or incorrect disclosure of certain information of this format, are made the grounds, to challenge, or call in question the election of the respondent no. 1.

The order dated 28.6.2002 further provided, that the non-furnishing of affidavit by any candidate, shall be considered as violation of the order of the Hon'ble Supreme Court, and nomination shall be liable to rejection at the time of scrutiny. It was also stipulated, that furnishing of wrong or incomplete information, or suppression of any material information, by any candidate, in or from the said affidavit, may also result in rejection of the nomination paper, where such wrong or incomplete information, or suppression of material information, is considered by the returning officer to be defect of substantial character. Then a proviso was appended, that only such information shall be considered to be wrong, or incomplete, or amounting to suppression of material information, as is capable of easy verification by the returning officer, by reference to the documentary proof, adduced before him, in the summary inquiry, conducted by him, at the time of scrutiny of the nominations, under Section 36(2) of

the Act, and only the information so verified shall be taken into account by him for further consideration of the question, as to whether same is defect of substantial character or not.

That order also stipulated, that the information furnished by the candidate shall be disseminated by the respective returning officer, by displaying copy of the affidavit on the notice board, and also by making its copies available free and liberally to all other candidates and representative of print media and electronic media, and also provided that if any rival candidates furnish information to the contrary, by means of a duly sworn affidavit, then such affidavit by rival candidate shall also be disseminated, along with the affidavit of the candidate concerned, in the above manner.

Thus by this order dated 28.6.2002 the information, as contemplated by the Election Commission, were required to be given, and objections could be filed to that, and nomination could be rejected, if the returning officer come to the conclusion, that the nomination paper contains wrong, or incomplete information, or suppresses material information, and is defect of substantial character, is to be decided in the manner prescribed in the proviso. It appears that the whole thrust of the election petition is substantially based on this.

Then by Ordinance No.4 of 2002 dated 24th

August 2002, Section 33B was introduced, doing away with the requirement of the disclosure of the informations mentioned above, however, validity of that Ordinance was challenged, and Hon'ble the Supreme Court, in the judgment dated 13.3.2003, declared the amended provisions of Section 33B as illegal, null and void. But then, in the said order, in the judgment rendered by Justice P. Venkatarama Reddi, which was concurred by Justice D.M. Dharmadhikari, it was held, that the direction No.4 in para 14, in so far as verification of assets and liabilities by means of summary inquiry, and rejection of nomination paper, on the ground of furnishing wrong information, or suppressing material information, should not be enforced. While declaring Section 33B to be illegal, null and void, the earlier instructions issued by the Election Commission dated 28.6.2002, were ordered to continue to be operative, subject to the directions mentioned above, therefore, the Election Commission revised, and reissued the instructions, vide order dated 27.3.2003. These are contained in para 16 of the order.

It is on this para 16 of order dated 27.3.2003, that much stress is laid by learned counsel for the petitioner, inasmuch as, according to sub-para (1), the information in regard to matter specified was to be furnished in the format annexed as Annex.1, which obviously contains information regarding movable and immovable properties as well. Then according to sub-para (3), it is stipulated, that non-furnishing of

affidavit shall be considered to be violation of the order of Hon'ble the Supreme Court, and nomination is liable to be rejected. Then according to sub-para (4) and (5) again, it is laid down, that the information shall be disseminated, and objections can be filed. Significantly, like sub-para (4) of the earlier order dated 28.6.2002, about the nomination being liable to rejection, in the event of furnishing of wrong or incomplete information, or suppression of material information, does not find place in this order dated 27.3.2003, except what is mentioned in sub-para (3).

Then in para 17 it has been provided as under:-

"17. For the removal of doubt, it is hereby clarified that the earlier direction contained in para 14(4) of the earlier order dated 28th June, 2002, in so far as verification of assets and liabilities by means of summary enquiry and rejection of nomination paper on the ground of furnishing wrong information or suppressing material information is not enforceable in pursuance of the order dated 13th March, 2003 of the Apex Court."

Thus, a reading of this para 17 clearly has the effect of "letting the cat to go out of that". It is a clarificatory provision, specifically clarifying, that earlier directions contained in the order dated 28.6.2002, in so far as rejection of nomination paper, on the ground of furnishing wrong information, or suppressing material information, is not enforceable in pursuance of the order dated 13.3.2003 of the Apex Court.

Irresistible and obvious conclusion, deducible from the above para 17 of the order dated 27.3.2003 is, that as required by Order 7 Rule 11, assuming, that the returned candidate did not furnish correct information, or furnished wrong information, and suppressed material information, with regard to immovable properties, still the direction regarding rejection of nomination paper, on that ground, was not enforceable. That being the position, it cannot be said, that, either the nomination paper was improperly accepted, or that, there was any non-compliance with the provision of Constitution, or of the Act, or the Rules, or orders made thereunder, so as to make out any of the grounds, under Section 100(1)(d)(i) or (iv).

It is a different story, as to what are the dimensions of the right of voter, to know about the candidate, on the aspects, desired by the petitioner, as this question has already been referred to Larger Bench of Hon'ble the Supreme Court, vide judgment dated 23.2.2009, rendered by Hon'ble Supreme Court, in case of People's Union for Civil Liberties & Anr. Vs. Union of India & Anr., reported in 2009 AIR SCW 2819, whereby it has been held, that the issue needs a clear exposition of law by Larger Bench, and with the view, that width and amplitude of the power of the Commission under Article 324 needs further consideration by a larger Bench, in the light of the judgments of Hon'ble Supreme Court, whereby the elector's right to be informed about the assets and

antecedents of the persons seeking election to the legislature has been duly recognised.

In that view of the matter, as the things stood as on the relevant date, it cannot be said, that the grounds raised in the election petition, to call in question the election of respondent No.1, even if taken on the face value, make out any ground, under any of the clauses of Section 100(1)(d) of the Act.

The net result is, that within the meaning of Order 7 Rule 11(a), the election petition, taken on the face value, even read with the order of the Election Commission dated 27.3.2003, does not disclose any cause of action, and the same is liable to be rejected on that count.

Accordingly, the application filed by respondent No.1 under Order 7 Rule 11, being I.A.No.4889/2009, dated 2.4.2009, is allowed, and the election petition is dismissed, as not disclosing any cause of action. In the circumstances of the case, the parties are left to bear their own costs.

(N P GUPTA), J.

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